

Comments about Proposed EAC [*Election Audits – A Practical Guide*](#)

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Background –

I am an independent physicist who has been extensively involved (nationally) with the Election Integrity Issue. For example, I put together a team of independent experts who wrote ten (10) election integrity Reports. (Our initial Report was the first post-2020 election report published in the US.) See these insightful Reports [here](#).

THANK YOU to the EAC for further addressing the foundational issue of **election audits**. A point of interest is that our [tenth Report](#) was about Post-Election Audits.

Despite being posted for over five years, and widely written about, **none** of our unique and powerful election integrity Reports has been shown to be inaccurate.

Introduction –

I appreciate the sensitivity needed when the Federal Government (e.g., EAC) gets involved in what is perceived to be a State matter. However, election integrity (particularly regarding elections for Federal positions) is a **national** issue, and it should not be allowed to be compromised by State politics.

My **first recommendation** is that the EAC explain up front that their *Practical Guide* document is **only** about audits for FEDERAL elections. This would likely result in fewer arguments that the EAC is infringing on State rights.

Further, once a State enacted proper election audits for Federal elections, it would be much easier for them to extend this to State and Local elections.

My **second recommendation** is that if a primary objective is to restore public confidence in our National elections, this document should change its strategy from *suggestive* and *flexible* to *normative* and *aspirational*. Even if EAC's Election Audit Standards cannot be mandated, they should be framed as proper and reasonable goals for any State that desires to have accurate and secure National elections.

The following are some additional suggestions to improve this good EAC document...

Recommended Modifications of Guide Standards —

3. On Page 6, "Timely" is just mentioned in passing. It's critically important that some post-election audits be completed *prior to* State election certification (as mentioned on Page 23). As a result, in such cases, timeliness is paramount.

Recommendation: Timeliness should be an additional *Topic: Effective* Standard.

4. Nothing is mentioned regarding the goal of accuracy of the Audit. A competently conducted audit will provide accurate results.

Recommendation: Accuracy should be an additional *Topic: Effective* Standard.

5. Nothing is discussed regarding the statistical soundness of the Audit (!). Using appropriate statistical procedures is key to an effective audit.

Recommendation: Statistically Sound should be a new *Topic: Effective* Standard.

6. Since the EAC certifies voting machines, it has a unique responsibility to address the limitations of those machines. The EAC should make clear to the public that it recognizes the inherent fallibility of the systems that *they* certify, moving the burden of proof from *trusting the machine* to *verifying the physical record*.

Recommendation: Under the **Secure** or **Professional** sections, add a standard for **Software Independent Verification**. This should explicitly state that a system is only truly secure if the results can be verified by a manual, hand-count audit of ballots by legitimate voters, that is independent of the machine's internal software.

Additional Guide Recommendations —

7. The current list of audit types (Access, Ballot Design, etc. on Page 3) is a catalog that confuses **compliance procedures** (*checking if rules were followed*) with **outcome verification** (*checking if the results match the physical ballots*). Who cares if the *Logic and Accuracy* test was performed if the final vote count is suspect? The EAC must clarify that procedural audits are *not* a substitute for a hand-count of legitimate voter-verifiable paper ballots.

Recommendation: Create a clear, bold distinction in the Standards Framework between **Procedural Audits** and **Verification Audits**.

8. **Flexibility** (Pages 25 & 26) can be code for *we can lower our standards if we don't have enough money*. Instead of implying *you don't have to do it if it's hard*, the EAC should establish some minimum standards while acknowledging local constraints.

Recommendation: Rename the **Flexibility** standard to something like *Scalability of Verifiability*.

9. The section on **Transparency** (Page 32) says public observation is *desirable but must not interfere*. This is institutional language used to justify excluding legitimate observers. If the EAC defines *meaningful* by default, it becomes much harder for local officials to justify rotating observers or keeping them in a different room.

Recommendation: Rewrite this to define **Meaningful Observation**. It should spell out that observers must be given a clear visible line of sight, the right to document the process (within privacy laws), and the right to log challenges in real-time.

Recommendations for New Guide Material —

10. Since the EAC cannot force compliance, it should use its function as a national clearinghouse to create a public incentive structure. If the EAC provides an adherence template for this profile, they aren't forcing anything; they are providing a tool. Once the template exists, local media and citizen watchdog groups will do the work of holding officials accountable for their score.

Recommendation: Add a section under *Accountable* that suggests each election jurisdiction publish an *Audit Transparency Profile*. This profile would check off which of EAC's voluntary standards they have adopted.

11. A common post-election issue is that when States report their election results (e.g., to Edison), they often report **negative ballots**. (There were some 4 Million of these in 2020! One of our Reports covered this.) The States claim that these are *corrections*, but zero documentation is provided (or available) to confirm such major adjustments.

Recommendation: Negative Ballot Transparency for federal elections should be an additional Standard somewhere in the EAC Election Audits Guide.

12. The document appears to lack any mention of what to do when something goes wrong. Currently, officials often treat discrepancies as *minor errors* and bury them. By making this a standard, the EAC creates an expectation that discrepancies are *data*, not just nuisances to be ignored.

Recommendation: Add a standard under **Objective** or **Accountable** for *Discrepancy Reporting*. This should mandate that if an audit finds an anomaly, that anomaly must be recorded, published, and investigated, regardless of whether or not it changes the outcome of the election.